CONDITIONS OF PARTICULAR APPLICATION

Contract Title: FIDIC Conditions of Contract for Construction Red Book 2017

Particular Conditions Part B - Special Contractual Provisions

Sub-Clause 1.5 Priority of Documents

The documents forming the Contract are to be taken as mutually explanatory of one another.

If there is an ambiguity or discrepancy in the documents, the priority of the documents shall be:

a Contract Agreement, b Letter of Acceptance, c Particular Conditions PC,

d General Conditions GC, e Specifications, f Drawings, and g Priced BOQ.

The Particular Conditions shall strictly prevail over the standard General Conditions.

CLAUSE 8 - COMMENCEMENT AND DELAYS

Sub-Clause 8.4 Extension of Time for Completion

The Contractor shall be entitled subject to Sub-Clause 20.2 [Claims for Payment and/or EOT] to an Extension of the Time for Completion if and to the extent that completion is or will be delayed by:

a A Variation or substantial change in the quantity of an item of work in the Contract;

b Exceptionally adverse climatic conditions beyond historical 30-year meteorological return periods;

c Unforeseeable physical conditions encountered on Site pursuant to Sub-Clause 4.12; or

d Any delay, impediment or prevention caused by or attributable to the Employer or Engineer.

CLAUSE 8.6 - RATE OF PROGRESS AND EXPEDITING

Sub-Clause 8.6 Rate of Progress

If at any time the Engineer determines that actual progress is lagging behind the approved schedule, other than as a result of a cause listed in Sub-Clause 8.4, the Engineer may instruct the Contractor to submit a revised Recovery Programme and expedited method statement.

Unless the delay was contributed to by an Employer Risk event, expediting measures including supplementary shifts and overtime shall be executed at the Contractor own risk and cost.

Sub-Clause 8.7 Delay Damages apply if completion is delayed without approved EOT.

CLAUSE 13 - VARIATIONS AND CONTRACT ADJUSTMENTS

Sub-Clause 13.1 Right to Vary

Variations may be initiated by the Engineer at any time prior to issuing the Taking-Over Certificate.

Sub-Clause 13.3 Variation Procedure

Prior to instructing any Variation, the Engineer may request the Contractor to submit a quotation. Within 14 days of receipt of the request, the Contractor shall submit a detailed cost estimate and schedule evaluation detailing contemporary labor rates, equipment, and critical path impacts.

CLAUSE 20 - CLAIMS FOR PAYMENT AND TIME EXTENSION

Sub-Clause 20.2 Claims for Payment and/or EOT

If the Contractor considers itself entitled to additional payment under any Clause or otherwise in connection with the Contract, and/or to any extension of the Time for Completion, the Contractor shall submit a Notice to the Engineer describing the event or circumstance giving rise to the claim.

The Notice shall be given as soon as practicable, and no later than 28 days after the Contractor became aware.

If the Contractor fails to give a Notice of Claim within this period of 28 days, the Time for Completion shall not be extended, the Contractor shall not be entitled to additional payment, and the Employer shall be fully discharged from all liability in connection with the claim.